

HOUSE BILL 1795

By Crawford

AN ACT to amend Tennessee Code Annotated, Title 48,
Chapter 102, relative to fraternal organizations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 48-102-202, is amended by deleting the section and substituting:

(a) The officers and members of a masonic lodge, or a masonic lodge-sponsored corporation or limited liability company, may take by deed through a purchase or by gift real property, including any structure located upon the real property, and personal property for the purposes of, but not limited to, building, maintaining, or acquiring a masonic lodge, hall, or temple, or for a burial place.

(b) A deed for real or personal property described in subsection (a), whether such deed effectuates a purchase or gift, must vest the legal title to such real or personal property in the officers or members of the acquiring masonic lodge or in a masonic lodge-sponsored corporation or limited liability company formed and organized for such purpose.

(c) A masonic lodge-sponsored corporation or limited liability company may rent or lease real or personal property to a masonic lodge or another entity on such terms and conditions as such masonic lodge-sponsored corporation or limited liability company may designate.

(d) This section does not affect a conveyance of real property or personal property to a corporation or limited liability company which occurred prior to the effective date of this act.

(e) As used in this section, "masonic lodge-sponsored corporation or limited liability company" means a corporation or limited liability company that is incorporated or organized under this title by the officers or members of a masonic lodge, and which acts through officers or members authorized by such masonic lodge.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.